THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS,
1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO
---CHUNK---
SOURCE: MEPC.329(76).pdf
RESOLUTION MEPC.329(76) (adopted on 17 June 2021)
AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION
FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO - 2 -
RESOLUTION MEPC.329(76)
(adopted on 17 June 2021)
AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE
PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE
PROTOCOL OF 1978 RELATING THERETO
Amendments to MARPOL Annex I
(Prohibition on the use and carriage for use as fuel of heavy fuel oil
by ships in Arctic waters)
THE MARINE ENVIRONMENT PROTECTION COMMITTEE,
RECALLING Article 38(a) of the Convention on the International Maritime Organization
concerning the functions o f the Marine Environment Protection Committee conferred upon it
by international conventions for the prevention and control of marine pollution from ships,
RECALLING ALSO article 16 of the International Convention for the Prevention of Pollution
from Ship s, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which
specifies the amendment procedure and confers upon the appropriate body of the
---CHUNK---
SOURCE: MEPC.329(76).pdf
from Ship s, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which
specifies the amendment procedure and confers upon the appropriate body of the
Organization the function of considering and adopting amendments thereto,
HAVING CONSIDERED, at it s seventy -sixth session, proposed amendments to MARPOL
Annex I concerning the prohibition on the use and carriage for use as fuel of heavy fuel oil by
ships in Arctic waters, which were circulated in accordance with article 16(2)(a) of MARPOL,
1 ADOPTS, in accordance with article 16(2)(d) of MARPOL, amendments to MARPOL
Annex I, the text of which is set out in the annex to the present resolution;
2 DETERMINES, in accordance with article 16(2)(f)(iii) of MARPOL, that the
amendments shall be deemed to have been accepted on 1 May 2022 unless prior to that date
not less than one third of the Parties or Parties the combined merchant fleets of which
constitute not less than 50% of the gross tonnage of the world's merchant fleet have
communicated to the Organization their objection to the amendments;
3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL,
---CHUNK---
SOURCE: MEPC.329(76).pdf
constitute not less than 50% of the gross tonnage of the world's merchant fleet have
communicated to the Organization their objection to the amendments;
3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL,
the said amendments shall enter into force on 1 November 2022 upon their acceptance in
accordance with paragraph 2 above;
4 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL,
to transmit certified copies of the present resolution and the text of the amendments contained
in the annex to all Parties to MARPOL;
5 REQUESTS ALSO the Secretary-General to transmit copies of the present resolution
and its annex to Members of the Organization which are not Parties to MARPOL.
RESOLUTION MEPC.329(76) (adopted on 17 June 2021)
AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION
FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO - 3 -
ANNEX
AMENDMENTS TO MARPOL ANNEX I
(Prohibition on the use and carriage for use as fuel of heavy fuel oil by ships in
Arctic waters)
1 The title of chapter 9 is amended as follows:
---CHUNK---
SOURCE: MEPC.329(76).pdf
ANNEX
AMENDMENTS TO MARPOL ANNEX I
(Prohibition on the use and carriage for use as fuel of heavy fuel oil by ships in
Arctic waters)
1 The